



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores, Planner I
Subject: PUDC-24-119 / 3501 Forest Drive / Zone Change
Date: August 12, 2024

Background:

The item for consideration is a *Zone Change*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Ordinance 1st Reading: Monday, August 12, 2024, 6:00pm
- Public Service Committee: Tuesday, August 20, 2024, Noon
- Ordinance 2nd Reading: Monday, August 26, 2024, 6:00pm
- Public Service Committee: Wednesday, September 4, 2024, Noon
- Ordinance 3rd Reading: Monday, September 9, 2024, 6:00pm

Planning Commission Recommendation:

The Planning Commission heard this item at their August 5, 2024 meeting and unanimously voted to recommend the Governing Body **deny** this application. The Planning Commission recommended denial due to not meeting review criteria 1, 2, and 8. The Planning Commissions' analysis was that the project did not meet the comprehensive plan, was not compatible with the neighborhood, and presented public health, safety, or welfare concerns due to potential traffic impacts from potential commercial redevelopment.

The Planning Commission Staff report is attached.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM LR LOW-DENSITY RESIDENTIAL TO CB COMMUNITY BUSINESS FOR LAND LOCATED AT 3501 FOREST DRIVE (LOCATED SOUTHEAST OF THE INTERSECTION OF PERSHING BOULEVARD AND FOREST DRIVE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 5, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and made a recommendation on said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as Block 44, less the east 2', Mountview Park, 7th Filing, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

August 5, 2024

STAFF REPORT

FILE: PUDC-24-119: a portion of Block 44 Mountview Park, 7th Filing – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 5.17 acres of land from LR-Low Density Residential to CB-Community Business.

LOCATION: 3501 Forest Drive, Cheyenne, Wyoming.

APPLICANT: Robert Born

AGENT: William Lewis

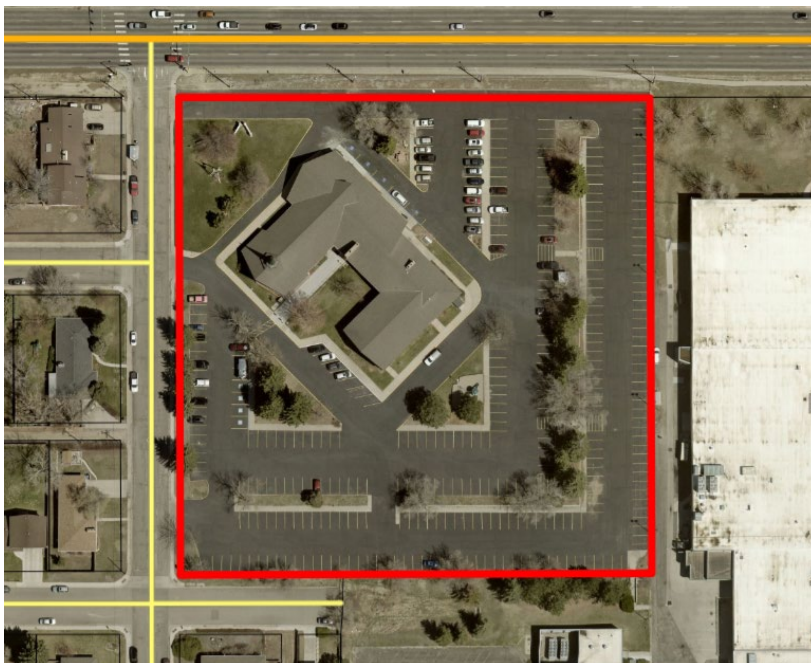
OWNER: Robert Born

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: Zone change to allow a new Electronic Message Center sign

PREPARED BY: Athen Mores, Planner I



RECOMMENDED MOTION:

Move to **approve** the rezoning of All Block 44, Less the East 2', Mountview Park, 7th filing to CB-Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-Density Residential to CB-Community Business for roughly 5.17 acres of land. The land is currently being used as a church, and they would like to install an LED Electronic Message Center sign into the existing brick signage.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	LR- Low Density Residential	Church
North	Public and Quasi-Public	P- Public	School
South	Urban Residential and Community Business	LR/CB- Low Density Residential and Community Business	Parking lot and Single-family Residential
East	Community Business	CB- Community Business	Office
West	Urban Residential	LR-Low Density Residential	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property is Urban Residential and the surrounding area is Urban Residential, Community Business, and Public. According to the comprehensive plan the optimal City zones for the subject property's future land use is one of the many residential zone

districts, however, on the south and east, the future land use plan's optimal zone is CB Community Business. Except in cases of a hard barrier (such as a railroad or interstate, the future land use map should be viewed as using 'fuzzy' lines, that is, areas should gradually transition from one future land use to another.

When the future land use map was created, many previously-developed areas were given future land use designations based on current zoning or current ownership. Areas exempt from property taxes were given the 'public quasi-public' future land use designation, even if they were private entities. This resulted in HUD homes in the middle of neighborhoods being designated 'public' despite being surrounded by the Urban Residential category. Churches also received this designation, including the subject property. With the Connect 2045 comprehensive plan update, any privately-owned 'public'-designated parcel was assigned a new future land use designation based on existing zoning. As the subject parcel was zoned residential, it was given the 'Urban Residential' future land use designation.

The current use of the parcel is nonconforming (prohibited) in the LR zone and would require commercial zoning by the current zoning code. Any expansion of the use would require a zone change or conditional use approval.

Based on the policies and future land use map, CB zoning is appropriate for this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Surrounding properties are zoned CB, P, and LR. The LR zone is described as low density residential. The P zone allows a variety of public uses, which are all non-residential in nature.. The CB zone is to the east and south, and is the requested zone for this parcel. Generally, the code encourages buffering between the CB and LR zones.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current use of the parcel is nonconforming (prohibited) in the LR zone and would require commercial zoning by the current zoning code. Any expansion of the use would require a zone change or conditional use approval.

The LR, as put forward in the UDC, is intended for larger-block, front-loaded, suburban style development patterns. CB zoning is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The current function of the property is better suited to the CB zone, such as the other business to the east.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB District is intended for Retail, Employment, Service and Civic uses that may serve number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The current function of the property is better suited to the CB zone, such as the other business to the east. Due to the nature and users of CB-zoned property, the CB zone has a much more flexible signage allowance. The impetus behind the request is to allow the current site more signage options.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The CB zone allows a variety of commercial uses including retail, employment, service, and civic uses. The applicant intends to install a new LED sign into the existing brick signage of the church. Changing from LR zone to CB zone would enable this. Should the existing use cease and the property need redevelopment, the options presented by the CB zone are more logical and feasible than those of the LR zone.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Review comments discussed how the proposal meets comprehensive plan principles. The parcel should be this zone based on the physical form of the area to the north, east and southeast, and the neighboring business.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the CB zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

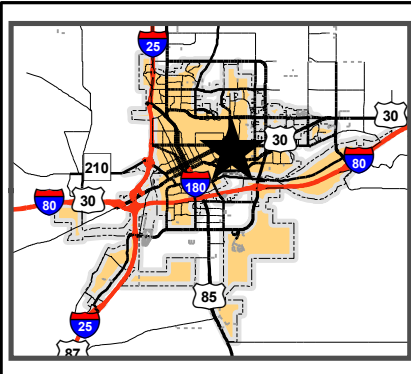
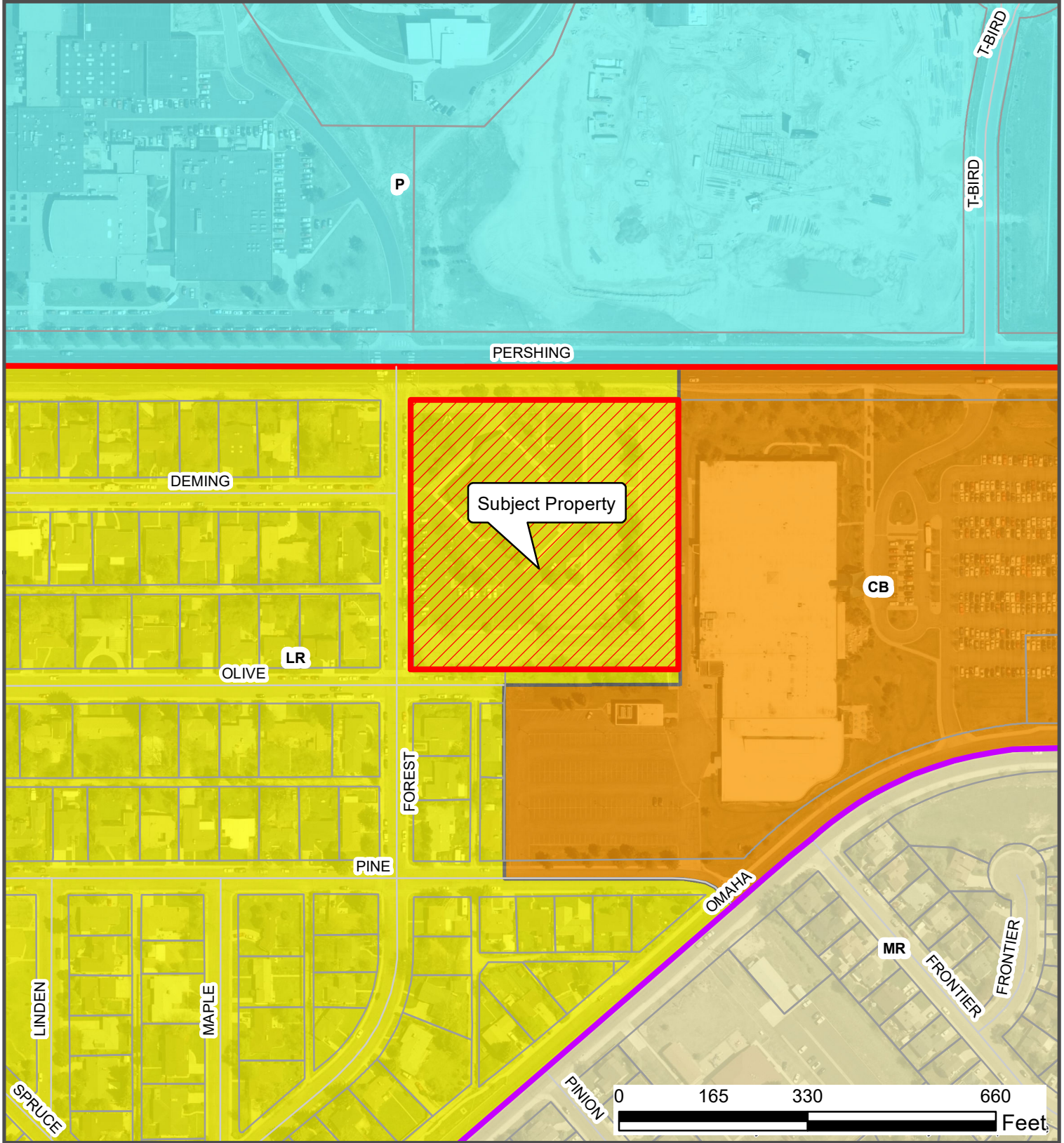
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from LR to CB.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

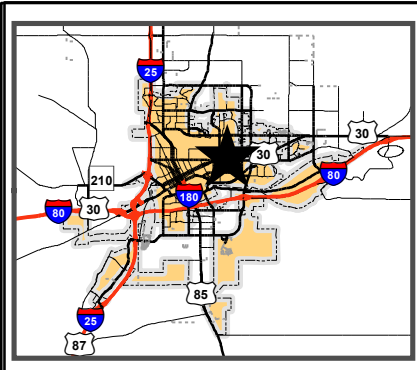
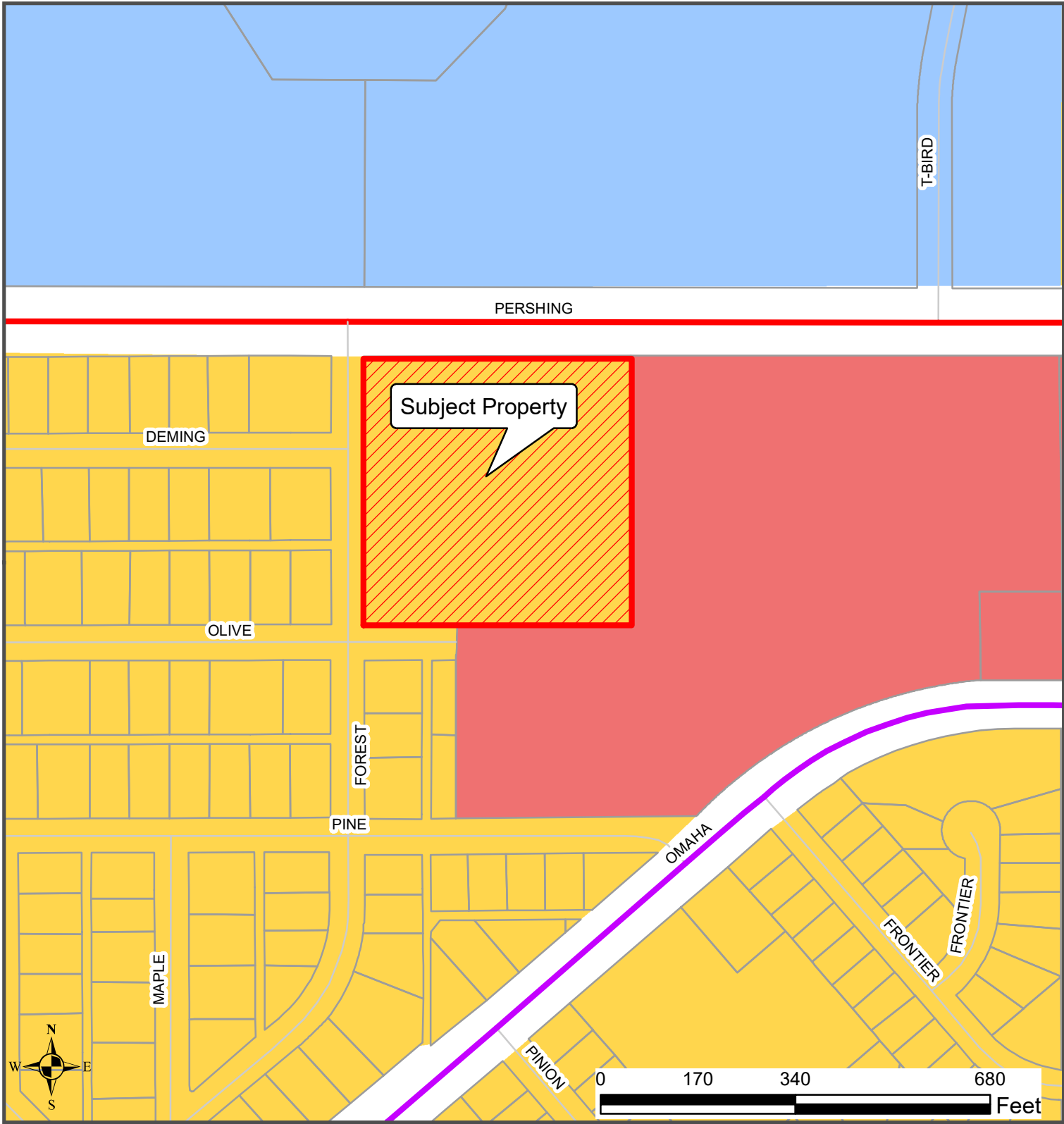


Attachment 1: Zoning Map PUDC-24-119

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| Nov19_CityLimits | A-1 / Agricultural and Rural Residential |
| Interstate | A-2 / Agricultural |
| Principal Arterial | AG / City Agricultural |
| Minor Arterial | MUR / Mixed Use Residential Emphasis |
| Major Collector | CBD / Central Business District |
| Minor Collector | CB / Community Business |
| Local | NB / Neighborhood Business |
| Private | MU / Mixed Use - County |
| Platted not built | MUB / Mixed Use Business Emphasis |
| HR / High Density Residential | MUE / Mixed Use Employment Emphasis |
| MR / Medium Density Residential | HI / Heavy Industrial |
| LR / Low Density Residential | LI / Light Industrial |
| NR-2 / Neighborhood Residential - Med. Density | P / Public |
| NR-3 / Neighborhood Residential - High Density | AD / Airport District |
| AR / Agricultural Residential | PUD / Planned Unit Development |
| | X / Exempt |



Attachment 2: Land Use Map PUDC-24-119

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Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Platted not built				
	Ownership				



Cheyenne, WY

July 29, 2024

PUDC-24-119**Zoning Map Amendment**

Status: Active

Submitted On: 7/9/2024

Primary Location3501 FOREST DR
Cheyenne, WY 82001**Owner**CrossBridge Alliance Church
3501 Forest Dr. CHEYENNE, WY
82001**Applicant** William Lewis
 307-640-5205
 bill@billewis.com
 900 North Star Loop
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* 

Zone Change

Proposed Zoning* 

CB Community Business

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



William J. Lewis

Jul 9, 2024

2

P

T-BIRD DR

E PERSHING BLVD

3501

PROPOSED
CB

C

CB

LR

DR

OMAHA RD

PINE DR

MR

FRONT

City LR - LOW DENSITY RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling ("Duplex")
Child Care, In Home - Minor
Home occupations
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Child Care, In Home - Major
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Cottage Lots
Group Housing
Manufactured housing parks
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Community Athletic Field
Assisted Living / Nursing Home
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Lodging, Bed and Breakfast

City CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Live/Work
Mixed-use Dwelling
Educational facilities
Service Business - Limited
Service Business - General
Animal Care - Kennel
Animal Care – Hospital / Clinic
Child Care, In Home - Minor
Child Care, In Home - Major
Child Care, Center - Minor
Child Care, Center - Major
Emergency Shelter
Entertainment, Indoor Recreation Facility
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Mini Storage
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Outdoor Sales, Limited
Automobile Service Repair
Automobile Service Station - Limited
Automobile Service Station - General
Food Service – Limited (under 2K)

<i>Uses By Right</i>
Food Service – General (2K – 4K)
Food Service – Large-scale (over 4k)
Government Facility
<i>Uses requiring Administrative approval</i>
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Entertainment, Venue (1000+ maximum occupancy)
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Limited Industrial
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Multi-dwelling Building (“Apartment”)
Urban Loft Building
Developed Athletic Field or Stadium
Assisted Living / Nursing Home
Entertainment, Outdoor Recreation Facility
Entertainment, Amusement, Recreation—Other
Outdoor Sales
Automobile Service Station – Large-scale
Data Center
Recycling Services
Transportation facilities
Nurseries, landscaping